

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION, PRICE JUSTIFICATION
(JOFOC)**

**ACQUISITION OF VEHICLE RENTAL IN SUPPORT OF A
VIP VISIT**

1. I recommend that the Department of State use other than full and open competition for the acquisition of rental vehicles for this VIP visit.

2. Nature and/or description of the action being approved.

Senior High Level USG Principal traveling with a delegation inclusive of support elements in: Security, Communications, Logistics and Operations.

3. A description of the supplies or services required to meet the agency's needs.

The contract is for vehicle rental services from the following companies:

- KTC (India) Pvt. Ltd. (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- Mann Fleet Partners Limited (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- Asian Travel (Co) Pvt. Ltd. (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- Doaba Luxury Travels (I) Pvt Ltd (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- White Feather Cab India Pvt. Ltd. (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- Bakshi Transport Company (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- Adarsh Tourist Transport Service (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- ECOS (India) Mobility & Hospitality Ltd. (Estimated cost is INR10,81,99,980.00 (~approx. USD\$1,258,140.00).
- Demand Logistics LLP (Estimated cost is INR 37,670,850.00 (~approx. USD\$438,033.13).

4. An identification of the statutory authority permitting other than full and open competition.

[X] 41 U.S.C. 253 (c) (2), FAR 6.302-2; Unusual and Compelling Urgency; (Based on the available time and urgency of the requirement as detailed below)

This contract is solely for the Senior High Level USG Principal traveling with a delegation inclusive of support elements in: Security, Communications, Logistics and Operations in New Delhi, India.

Security concerns prohibit sufficient advanced notification of VIP travel to allow for sufficient time to conduct full and open competition. The Department of State can only communicate with the staff at Posts abroad when authorization is given due to security concerns. They have an extremely short turnaround time when authorization has been granted for negotiations to commence and site selections to be finalized with both the local vendors and Posts before the actual Senior High Level USG VIP visit occurs.

Many of the arrangements for transportation are often not confirmed until just before the actual visit. In addition, to supporting a large delegation within a short time frame, last minute and frequent changes requirements for supporting personnel often result in significant changes in how Posts work with the vendors. With the exception of few trips, contracts are not permitted to be signed until the Department of State (Post) has written confirmation from all supporting agencies, which enables collection of funds from said agencies in the event of cancellation. This results in an unusual and compelling urgency in accordance with 41 U.S.C. 253 (c) (2), FAR 6.302-2

The visit is happening at three different locations at Jaipur, Agra and Delhi. One or two companies can't fulfill the requirements, hence multiple contracts shall be awarded.

These unique VIP travel requirements result in only a single or a very limited number of responsible sources with no other supplies or services capable of satisfying agency requirement in accordance with 41 U.S.C. 253 (c) (2), Far 6.302-2.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Security and safe travel are the Department of State's primary considerations when procuring vehicle rental services. The Department of State must be able to provide a safe and secure transportation for VIP visitors. Frequently VIP visits are not announced or confirmed in sufficient time to conduct a competition, creating an urgent and compelling need.

[X] The VIP visit information was not available in sufficient time thereby creating an urgent and compelling need.

[X] The proposed contractor has the following unique qualifications which meet the Department of State's security and logistical requirements.

- ☒ Type and number of vehicles
- ☒ Availability of vehicles upon request to be done with a very short notice.
- ☒ Condition of vehicles was found to be suitable.
- ☒ Contractor has capability and experience to support requirements for this VIP visit.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

Due to urgency and exception in FAR 25.401(a)(5) this solicitation cannot be posted but the JOFOC will be published in SAM.gov.

Prices are taken from all the major companies who has the potential to fulfill requirements in the required locations.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Due to short time period all the major vehicle rental companies were approached for various type of vehicle. Since no one vendor was able to fulfill the entire requirement, solicitation was shared with all suitable vendors. Gathered estimated vehicle rental rates from nine vendors and a uniform rate was negotiated for each type of vehicle.

8. Any other facts supporting the use of other than full and open competition.

There is a limited availability of local vehicles and qualified drivers due to the last-minute confirmation of the event, the high tourist season, and the size of the rental market availability during the time this visit shall take place. It is imperative that the award of the contract is made immediately in order to secure available services. If contract award is not made in a timely manner, there is a high risk that there will be no availability of qualified transportation services for this event.

9. A listing of sources, if any, that expressed, in writing, an interest in the acquisition.

None

10. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

None

CERTIFICATIONS

I certify that the information in this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition to the best of my knowledge and belief.

April 7, 2025

Date

Phong C Ngo
Presidential Travel Director

I certify that this justification is accurate and complete to the best of my knowledge and belief. Based on my assessment, I conclude that other than full and open competition is justified, and the proposed price is fair and reasonable.

April 8, 2025

Date

Audrey F. Moyer
Contracting Officer